



LOS ANGELES COUNTY SHERIFF'S DEPARTMENT

REQUEST FOR PROPOSALS FOR CUSTODIAL SERVICES

RFP NO. 759-SH

REVISED UNDER BULLETIN #3

January 2026

**Prepared By
County of Los Angeles**

These guidelines are intended to provide general information only and are subject to revision. The rights and obligations of any party contracting with the County will be determined in accordance with the terms of the applicable Contract and applicable law.

TABLE OF CONTENTS

<u>PARAGRAPH</u>	<u>PAGE</u>
1.0 INTRODUCTION	1
1.2 Equitable Access to Healthcare for Contracted Employees.....	1
2.0 PURPOSE	2
2.1 Statement of Work (SOW)	2
2.2 Contract: County Terms and Conditions	2
3.0 MINIMUM MANDATORY REQUIREMENTS (MMRs)	3
4.0 COUNTY’S RIGHTS AND RESPONSIBILITIES.....	4
4.1 Representations Made Prior to Contract Execution	4
4.2 Final Contract Award by the Board of Supervisors	4
4.3 County’s Option to Reject Proposals	4
4.4 County’s Right to Amend Request for Proposals	4
4.5 Background and Security Investigations	4
5.0 NOTIFICATION TO PROPOSERS	5
5.1 Public Records Act	5
5.2 Contact with County Personnel.....	5
5.3 Mandatory Requirement to Register on County’s WebVen.....	6
5.4 Protest Policy Review Process	6
5.5 Conflict of Interest.....	6
5.6 Determination of Proposer Responsibility	7
5.7 Proposer Debarment.....	8
5.8 Improper Considerations.....	8
5.9 County Lobbyist Ordinance.....	9
5.10 Consideration of GAIN/START Participants for Employment.....	9
5.11 Jury Service Program	9
5.12 Living Wage Program	10
5.13 Pending Acquisitions/Mergers by Proposing Company	12
5.14 Defaulted Property Tax Reduction Program	12
5.15 County’s Commitment to Zero Tolerance Policy on Human Trafficking ...	12
5.16 Default Method of Payment: Direct Deposit or Electronic Funds Transfer (EFT)	13
5.17 Proposer’s Acknowledgement of County’s Commitment to Fair Chance Employment Hiring Practices	13
5.18 Prohibition from Participation in Future Solicitation(s).....	14

TABLE OF CONTENTS

<u>PARAGRAPH</u>	<u>PAGE</u>
5.19 Community Business Enterprise (CBE) Participation	14
5.20 Contribution and Agent Declaration	15
6.0 COUNTY'S PREFERENCE PROGRAMS	15
6.1 Overview of County's Preference Programs	15
6.2 Local Small Business Enterprise (LSBE) Preference Program	16
6.3 Social Enterprise (SE) Preference Program	16
6.4 Disabled Veteran Business Enterprise (DVBE) Preference Program	17
6.5 Preference Program Enterprises (PPEs) - Prompt Payment Program	17
7.0 BUSINESS PROPOSAL REQUIREMENTS AND EVALUATION	17
7.1 Truth and Accuracy of Representations	17
7.2 RFP Timetable	18
7.3 Proposers' Questions	18
7.4 Submission of Application for Exemption to Living Wage Program	18
7.5 Mandatory Proposers' Conference and Mandatory Facility Site Visits	19
7.6 Preparation of the Proposal	20
7.7 Business Proposal Requirements and Evaluation Criteria	20
7.8 Cost Proposal Requirements and Evaluation	27
7.9 Firm Offer-Withdrawal of Proposal	28
7.10 Proposal Submission	29
8.0 SELECTION PROCESS OVERVIEW	30
8.1 Selection Process	30
8.2 Labor Law-Payroll Violations	31
9.0 PROTEST PROCESS OVERVIEW	31
9.1 Solicitation Requirements Review	31
9.2 Disqualification Review	32
9.3 Department's Proposed Contractor Selection Review	32
9.4 County Independent Review	34

APPENDICES

A Sample Contract: Identifies the terms and conditions in the Contract.

Exhibit A Statement of Work

Attachment 1 Facility Specification Sheets

Attachment 2 Performance Requirements Summary (PRS) Chart

Attachment 3 Sign-in Sheet

Attachment 4 Entry Application for Custody Facilities
(Regions 1-3 only)

Exhibit B Pricing Schedule

Exhibit C Staffing Plan

Exhibit D County's Administration

Exhibit E Contractor's Administration

Exhibit F1 Contractor Acknowledgement and Confidentiality Agreement or

Exhibit F2 Contractor Employee Acknowledgement and Confidentiality Agreement

Exhibit F3 Contractor Non-Employee Acknowledgement and Confidentiality Agreement

Exhibit G Payroll Statement of Compliance

Exhibit H Contract Discrepancy Report

Exhibit I Invoice Discrepancy Report

B Required Forms: Forms that must be completed and included in the proposal.

C Solicitation Requirements Review (SRR) Request: Transmittal form sent to Department requesting a Solicitation Requirements Review.

D Guidelines for Assessment of Proposer Labor Law/Payroll Violations: Guidelines that will be used to determine whether the County will deduct evaluation points for labor/law payroll violations.

1.0 INTRODUCTION

The Los Angeles County (County) Sheriff's Department (Department) is issuing the Request for Proposals (RFP) to solicit proposals for contracts with organizations that can provide comprehensive custodial services. The objective of this RFP is to award contracts to Proposers capable of providing reliable, high-quality custodial services across multiple designated facilities within the County. Regions 1-4 including the locations of facilities and total square footage to be serviced at each facility is identified in Attachment 1 (Facility Specification Sheets) to Exhibit A (Statement of Work) to this RFP.

- 1.1 This RFP is intended to result in the award of four individual contracts (i.e., one contract per Region) for custodial services. Proposers may submit proposals for one or more regions; however, Proposers may be recommended for award of only one contract, provided their proposal meets the requirements outlined in this RFP including the staffing number specified in Attachment 1 (Facility Specification Sheets) to Exhibit A (Statement of Work) to this RFP. Proposals submitted in response to this RFP will be evaluated sequentially in the following order: Region 1, Region 2, Region 3, and Region 4. Contracts will be awarded using this sequential process to ensure fairness and equitable distribution among Proposers. If the County determines there are insufficient Proposers to meet the required contractual needs, additional Contracts may be awarded to the highest-ranked Proposer. However, these subsequent awards will only be considered after every eligible Proposer has been awarded one Contract.

1.1.1 The County, at its sole discretion, reserves the right to assign new facilities to any County Contractor. New facility assignments will be based on the needs of the affected Region and Contractor's capability to perform the services.

1.1.2 Awarded Contractor's inability to perform the services specified in Exhibit A (Statement of Work) to Appendix A (Contract) to this RFP, or for any other reason determined by the County, may result in the County utilizing other resources for services including, but not limited to, reassigning a facility and reallocating funds to another County contractor.

1.2 Equitable Access to Healthcare for Contracted Employees

The County's Board of Supervisors (Board) recognizes that while contracted security, janitorial, environmental and food service workers play an essential role in County operations – they are compensated below the industry standard. These frontline workers predominantly come from low-income communities and communities of color throughout the County. Low standards for County-contracted workers bring down standards across these already low wage service industries, exacerbating high rates of turnover and insecurity for precarious workers. On April 4, 2023, the Board filed a motion, "Equitable Access to Healthcare for Contracted Employees" encouraging all County Proposition A (Prop A) contracts for security, environmental, including janitorial, and food services to require 100% employer-paid healthcare premiums for employees who work 30 hours or more per week at the minimum actuarial value of Affordable Care Act (ACA) individual Gold Plan

health care coverage (Gold Plan). In alignment with the Board's priority, it is the Department's intent to contract with a Proposer who can provide its employees (providing services under the awarded contract) with the ACA Gold Plan coverage while still providing cost-effective rates to the County.

- 1.3 Titles, captions and headings contained in this solicitation are inserted as a matter of convenience and for reference and are not intended and must not be deemed or construed to define, limit, extend or otherwise describe the scope or any provision of this solicitation.

2.0 PURPOSE

2.1 Statement of Work (SOW)

Awarded Contractors must provide comprehensive custodial services for County-designated facilities as outlined in Exhibit A (Statement of Work) to Appendix A (Sample Contract) to this RFP. These services encompass all labor, supervision, equipment, material and supplies (as applicable) required to meet the County's standards for cleanliness and maintenance. General custodial responsibilities include routine cleaning of offices, conference rooms, lobbies, corridors, restrooms, and lunchrooms, as well as tasks such as waste removal, light fixture cleaning, and upkeep of parking facilities (as applicable). In addition, Contractors providing services in specific Regions will be required to provide specialty custodial services, including the cleaning of detention cells. Awarded Contractors will be expected to adhere strictly to the detailed requirements and specifications outlined in Exhibit A (Statement of Work), ensuring consistent delivery of high-quality services across all County-designated facilities. This comprehensive approach ensures that County facilities are maintained to promote health, safety, and operational efficiency.

2.1.1 Special Staffing Requirements (Region 1, Century Regional Detention Facility (CRDF) Only)

Contractor must ensure that all personnel (custodians and supervisors) assigned to provide Services at CRDF are female, as further specified in Attachment 1 (Facility Specification Sheets) to Exhibit A (Statement of Work) and Exhibit C (Staffing Plan) to the Contract.

2.2 Contract: County Terms and Conditions

Contractor will be required to abide by all terms and conditions outlined in Appendix A (Sample Contract) to this RFP. Proposer should review Appendix A (Sample Contract) with its legal counsel prior to submitting a proposal.

2.2.1 Anticipated Contract Term

Each Contract is anticipated to be for a period of four years commencing after execution by the Board. At the end of the Initial Term, the County may, at its sole option, extend the term of the Contract for up to three one-year option periods (Option Terms). Notwithstanding the maximum Contract term of seven years, the County retains its sole right to terminate earlier for convenience, non-appropriation of funds, default of Contractor,

substandard performance of Contractor, non-responsibility of Contractor, improper consideration given/offered to the County with respect to the award of the Contract, breach of warranty to maintain compliance with any of the County's rights to terminate the Contract.

2.2.2 Contract Rates

Contractor's rates will remain firm and fixed for the entire term of the Contract, including any Option Terms exercised by the County.

2.2.3 Days of Operation

Contractor will be required to provide custodial services for each Region during the coverage hours specified in Attachment 1 (Facility Specification Sheets) to Exhibit A (Statement of Work) to this RFP.

Contractor may be required to provide services on County-recognized holidays or special events and emergencies.

2.2.4 Indemnification and Insurance

Contractor will be required to comply with the provisions contained in Paragraph 8.24 (Indemnification) of Appendix A (Sample Contract) to this RFP. Contractor must procure, maintain, and provide to the County proof of insurance coverage for all the programs of insurance along with associated amounts specified in Paragraph 8.25 (General Provisions for all Insurance Coverage) and Paragraph 8.26 (Insurance Coverage) of Appendix A (Sample Contract) to this RFP.

3.0 MINIMUM MANDATORY REQUIREMENTS (MMRs)

Interested and qualified Proposers that can demonstrate their ability and qualifications to successfully provide the required services outlined in this RFP, are invited to submit a proposal(s), provided they meet the following Minimum Mandatory Requirements* at the time of proposal submission:

- 3.1 Proposers must demonstrate that they have two years' experience, within the last five years, providing custodial services in office buildings, institutional facilities, or similar facilities.
- 3.2 If Proposer's compliance with a County Contract has been reviewed by the Department of the Auditor-Controller (A-C) within the last ten years, then Proposer must not have unresolved questioned costs identified by the A-C, in an amount over \$100,000.00. Costs include those that are confirmed to be disallowed costs by the contracting County department and remain unpaid six months or more from the date of disallowance, unless such disallowed costs are the subject of current good faith negotiations to resolve the disallowed costs, in the opinion of the County.

* Proposer may not use subcontractor's experience to meet the Minimum Mandatory Requirements listed above.

4.0 COUNTY'S RIGHTS AND RESPONSIBILITIES

4.1 Representations Made Prior to Contract Execution

The County is not responsible for representations made by any of its officers or employees prior to the execution of the contract unless such understanding or representation is included in the final, executed contract.

4.2 Final Contract Award by the Board of Supervisors

Notwithstanding a recommendation of a department, agency, individual, or other, the Board retains the right to exercise its judgment concerning the selection of a proposal and the terms of any resultant Contract, and to determine which proposal best serves the interests of the County. The Board is the ultimate decision-making body and makes the final determinations necessary to arrive at a decision to award or not award a Contract.

4.3 County's Option to Reject Proposals

Proposers are hereby advised that this RFP is a solicitation for proposals only, and is not intended, and is not to be construed as, an offer to enter into a Contract or as a promise to engage in any formal competitive bidding or negotiations pursuant to any statute, ordinance, rule, or regulation. The County may, at its sole discretion, reject any or all proposals submitted in response to this RFP or may, in its sole discretion, reject all proposals and cancel this RFP in its entirety. The County will not be liable for any costs incurred by a Proposer in connection with the preparation and submission of any proposal. The County reserves the right to waive inconsequential disparities in a submitted proposal.

4.4 County's Right to Amend Request for Proposals

The County has the right to amend this RFP by written addendum. The County is responsible only for what is expressly stated in this solicitation document and any authorized written addenda thereto. Any such addendum will be made available to each person or organization which the County records indicate has received this RFP. Should any such addendum require additional information not previously requested, failure to address the requirements will result in the proposal being found non-responsive and not be considered further, as determined in the sole discretion of the County. The County is not responsible for and will not be bound by any representations otherwise made by any individual acting or purporting to act on its behalf.

4.5 Background and Security Investigations

As a condition of beginning and continuing Work under any resultant Contract, background and security investigations of Contractor's staff may be required at the discretion of the County. The cost of any required background checks will be the responsibility of Contractor.

5.0 NOTIFICATION TO PROPOSERS

5.1 Public Records Act

5.1.1 Responses to this solicitation will become the exclusive property of the County. Absent extraordinary circumstances, the recommended Proposer's proposal will become a matter of public record when: a) Contract negotiations are complete, b) the Department receives a letter from the recommended Proposer's authorized officer that the negotiated Contract is the firm offer of the recommended Proposer, and c) the Department releases a copy of the recommended Proposer's proposal in response to a Notice of Intent to Request a Proposed Contractor Selection Review under Board Policy No. 5.055 ([Services Contract Solicitation Protest](#)).

Notwithstanding the above, absent extraordinary circumstances, all proposals will become a matter of public record when the Department's Proposer recommendation appears on the Board agenda.

Exceptions to disclosure are those parts or portions of all proposals that are justifiably defined as business or trade secrets, and plainly marked by Proposer as "Trade Secret," "Confidential," or "Proprietary."

5.1.2 The County will not, in any way, be liable or responsible for the disclosure of any such record or any parts thereof, if disclosure is required or permitted under the California Public Records Act or otherwise by law. A blanket statement of confidentiality or the marking of each page of the proposal as confidential will not be deemed sufficient notice of exception. Proposers must specifically label only those provisions of their respective proposal which are "Trade Secrets," "Confidential," or "Proprietary," in nature.

5.1.3 In the event the County is required to defend an action on a Public Records Act request for any of the aforementioned documents, information, books, records, and/or contents of a proposal marked "Confidential," "Trade Secrets," or "Proprietary," Proposer agrees to defend and indemnify the County from all costs and expenses, including reasonable attorneys' fees, incurred in connection with any action, proceedings, or liability arising in connection with the Public Records Act request.

5.2 Contact with County Personnel

All contact regarding this RFP or any matter relating thereto must be in writing and e-mailed as follows:

E-mail address: v2flores@lasd.org

Attention: Virginia Flores-Villalobos, Contract Analyst

If it is discovered that Proposer contacted and received information from any County personnel, other than the person specified above, regarding this

solicitation, the County, at its sole determination, may disqualify their proposal from further consideration.

5.3 Mandatory Requirement to Register on County's WebVen

Prior to a Contract award, all potential Contractors must register in the County's WebVen. WebVen contains the Vendor's business profile and identifies the goods/services the business provides. Registration can be accomplished online via the Internet by accessing the County's home page at: <http://camisvr.co.la.ca.us/webven/>.

5.4 Protest Policy Review Process

5.4.1 Under Board Policy No. 5.055 ([Services Contract Solicitation Protest](#)) any prospective Proposer may request a review of the requirements under a solicitation for a Board-approved services Contract, as described in Paragraph 5.4.3 (Grounds for Review) below. Additionally, any actual Proposer may request a review of a disqualification or of a proposed Contract award under such a solicitation, as described respectively in the Paragraphs below. It is the responsibility of Proposer challenging the decision of a County department to demonstrate that the department committed a sufficiently material error in the solicitation process to justify invalidation of a proposed Contract award.

5.4.2 Throughout the review process, the County has no obligation to delay or otherwise postpone an award of Contract based on a Proposer protest. In all cases, the County reserves the right to make an award when it is determined to be in the best interest of the County to do so.

5.4.3 Grounds for Review

Unless state or federal statutes or regulations otherwise provide, the grounds for review of a solicitation for a Board-approved services Contract provided for under Board Policy No. 5.055 ([Services Contract Solicitation Protest](#)) are limited to the following:

- a. Solicitation Requirements Review [reference Paragraph 9.1 (Solicitation Requirements Review) of this RFP].
- b. Disqualification Review [reference Paragraph 9.2 (Disqualification Review) of this RFP].
- c. Department's Proposed Contractor Selection Review [reference Paragraph 9.3 (Department's Proposed Contractor Selection Review) of this RFP].
- d. County Independent Review [referenced in Paragraph 9.4 (County Independent Review) of this RFP].

5.5 Conflict of Interest

No County employee whose position in the County enables them to influence the selection of a Contractor for this RFP, or any competing RFP, nor any spouse or economic dependent of such employees, nor be employed in any capacity by a

Proposer or have any other direct or indirect financial interest in the selection of a Contractor. Proposer must certify that they are aware of and have read [Section 2.180.010 of the County Code](#) as stated in Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP.

5.6 Determination of Proposer Responsibility

- 5.6.1** A responsible Proposer is a Proposer who has demonstrated the attribute of trustworthiness, as well as quality, fitness, capacity and experience to satisfactorily perform the Contract. It is the County's policy to conduct business only with responsible Proposers.
- 5.6.2** Proposers are hereby notified that, in accordance with [Chapter 2.202 of the County Code](#), the County may determine whether Proposer is responsible based on a review of Proposer's performance on any Contracts, including, but not limited to, County contracts. Particular attention will be given to violations of labor laws related to employee compensation and benefits, and evidence of false claims made by Proposer against public entities. Labor law violations which are the fault of subcontractors and of which Proposer had no knowledge will not be the basis of a determination that Proposer is not responsible.
- 5.6.3** The County may declare a Proposer to be non-responsible for purposes of this Contract if the Board, in its discretion, finds that Proposer has done any of the following: a) violated a term of a contract with the County or a nonprofit corporation created by the County, b) committed an act or omission which negatively reflects on Proposer's quality, fitness or capacity to perform a contract with the County, any other public entity, or a nonprofit corporation created by the County, or engaged in a pattern or practice which negatively reflects on same, c) committed an act or omission which indicates a lack of business integrity or business honesty, or d) made or submitted a false claim against the County or any other public entity.
- 5.6.4** If there is evidence that the apparent highest-ranked Proposer may not be responsible, the Department will notify Proposer in writing of the evidence relating to Proposer's responsibility, and its intention to recommend to the Board that Proposer be found not responsible. The Department will provide Proposer and/or Proposer's representative with an opportunity to present evidence as to why Proposer should be found to be responsible and to rebut evidence which is the basis for the Department's recommendation.
- 5.6.5** If Proposer presents evidence in rebuttal to the Department, the Department will evaluate the merits of such evidence, and based on that evaluation, make a recommendation to the Board. The final decision concerning the responsibility of Proposer will reside with the Board.
- 5.6.6** These terms will also apply to proposed subcontractors of Proposers on County contracts.

5.7 Proposer Debarment

Proposer is hereby notified that, in accordance with [Chapter 2.202 of the County Code](#), the County may debar Proposer from bidding or proposing on, or being awarded, and/or performing work on other County contracts for a specified period of time, which generally will not exceed five years but may exceed five years or be permanent if warranted by the circumstances, and the County may terminate any or all of Proposer's existing contracts with the County, if the Board finds, in its discretion, that Proposer has done any of the following: a) violated a term of a contract with the County or a nonprofit corporation created by the County, b) committed an act or omission which negatively reflects on Proposer's quality, fitness or capacity to perform a contract with the County, any other public entity, or a nonprofit corporation created by the County, or engaged in a pattern or practice which negatively reflects on same, c) committed an act or offense which indicates a lack of business integrity or business honesty, or d) made or submitted a false claim against the County or any other public entity. These terms will also apply to proposed subcontractors of Proposers on County contracts.

A listing of Contractors that are currently on the Debarment List for the County may be obtained on the following website:

<https://doingbusiness.lacounty.gov/listing-of-contractors-debarred-in-los-angeles-county/county/>.

5.8 Improper Considerations

5.8.1 Attempt to Secure Favorable Treatment

It is improper for any County elected official, officer, employee or agent to solicit consideration, in any form, from a Proposer with the implication, suggestion or statement that Proposer's provision of the consideration may secure more favorable treatment for Proposer in the award of the Contract or that Proposer's failure to provide such consideration may negatively affect the County's consideration of Proposer's submission. Proposer must not offer or give either directly or through an intermediary, consideration, in any form, to a County elected official, officer, employee, or agent for the purpose of securing favorable treatment with respect to the award of the Contract.

5.8.2 Notification to County

Proposer must immediately report any attempt by a County elected official, officer, employee, or agent to solicit such improper consideration. The report will be made either to the County manager charged with the supervision of the employee or to the County Fraud Hotline at (800) 544 6861 or <https://fraud.lacounty.gov/>. Failure to report such a solicitation may result in Proposer's submission being eliminated from consideration.

5.8.3 Form of Improper Consideration

Among other items, such improper consideration may take the form of cash, discounts, services, the provision of travel or entertainment, or tangible gifts.

5.9 County Lobbyist Ordinance

The County has enacted an ordinance regulating the activities of persons who lobby County officials. This ordinance, referred to as the "Lobbyist Ordinance", defines a County Lobbyist and imposes certain registration requirements upon individuals meeting the definition. The complete text of the ordinance can be found in [County Code Chapter 2.160](#). In effect, each person, corporation or other entity that seeks a County permit, license, franchise or contract must certify compliance with the ordinance. As part of this solicitation process, it will be the responsibility of each Proposer to review the ordinance independently as the text of said ordinance is not contained within this RFP. Thereafter, each person, corporation or other entity submitting a response to this solicitation, must certify that each County Lobbyist, as defined by [County Code Section 2.160.010](#), retained by Proposer is in full compliance with [Chapter 2.160 of the Los Angeles County Code](#) and each such County Lobbyist is not on the Executive Office's List of Terminated Registered Lobbyists.

5.10 Consideration of GAIN/START Participants for Employment

5.10.1 As a threshold requirement for consideration for Contract award, Proposers must demonstrate a proven record of hiring participants in the County's [Department of Public Social Services Greater Avenues for Independence \(GAIN\) or Skills and Training to Achieve Readiness for Tomorrow \(START\) Programs](#) or must attest to a willingness to consider GAIN/START participants for any future employment openings if they meet the minimum qualifications for that opening. Proposers must attest to a willingness to provide employed GAIN/START participants access to Proposers' employee mentoring program, if available, to assist these individuals in obtaining permanent employment and/or promotional opportunities.

5.10.2 Proposers who are unable to meet this requirement will not be considered for Contract award. Proposers must submit a completed Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP, along with their proposal.

5.11 Jury Service Program

5.11.1 The prospective Contract is subject to the requirements of the County's Contractor Employee Jury Service Ordinance ("Jury Service Program") ([County Code, Chapter 2.203](#)). Prospective Contractors should carefully review Paragraph 8.8 (Compliance with the County's Jury Service Program) of Appendix A (Sample Contract), both of which are incorporated by reference into and made a part of this RFP. The Jury Service Program applies to both Contractors and their subcontractors.

Proposals that fail to comply with the requirements of the Jury Service Program will be considered non-responsive and excluded from further consideration.

- 5.11.2** Contractor must certify compliance with the County's Contractor Employee Jury Service Ordinance in Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP. If a Contractor does not fall within the Jury Service Program's definition of "Contractor" or if it meets any of the exceptions to the Jury Service Program, then Contractor must so indicate in Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP and include with its submission all necessary documentation to support the claim such as tax returns or a collective bargaining agreement, if applicable. Upon reviewing Contractor's application, the County will determine, in its sole discretion, whether Contractor falls within the definition of Contractor or meets any of the exceptions to the Jury Service Program. The County's decision will be final.

5.12 Living Wage Program

- 5.12.1** The prospective Contract is subject to the requirements of the County's Living Wage Program ([County Code Chapter 2.201](#)). Prospective Contractors should reference the Living Wage Ordinance and Paragraph 9.1 (Compliance with the County's Living Wage Program) of Appendix A (Sample Contract) to this RFP. The Living Wage Program applies to both Contractors and their subcontractors. Proposals that fail to comply with the requirements of the Living Wage Program may be considered non-responsive and excluded from further consideration.
- 5.12.2** The Living Wage Program requires Contractors and their subcontractors to pay their full time and part-time employees providing services to the County no less than a living wage. Contractors must pay employees a Living Wage for services provided to the County of no less than the hourly rates, effective as follows:

Effective Date	Hourly Rate
January 1, 2025	\$19.44
January 1, 2026	\$20.06
January 1, 2027	CPI-W

Every January 1, and thereafter the Living Wage rate will increase annually based on the U.S. Department of Labor, Bureau of Labor Statistics' Consumer Price Index for Urban Wage Earners and Clerical Works (CPI-W) for the Los Angeles metropolitan area for the 12-month period preceding July 1 of each year.

- 5.12.3** If the Contract involves the provision of services which were previously provided under a Contract that was or will be terminated prior to its

expiration, then Contractor is required to provide employment for the predecessor Contractor's employees. Contractor must offer employment to all such retention employees who are qualified for such jobs and who were employed by the predecessor Contractor for at least six months prior to the new Contract. However, Contractor is not required to hire a retention employee who has been convicted of a crime related to the job or the employee's job performance or who fails to meet any other County requirement for employees of Contractor. Contractor may not terminate a retention employee for the first 90 days of employment under the Contract, except for cause. Thereafter, Contractor may retain a retention employee on the same terms and conditions as Contractor's other employees.

5.12.4 Throughout the term of the Contract, Contractor and its subcontractor(s) will be required to submit periodic monitoring reports for each employee providing services under the Contract, certifying under penalty of perjury, the hours worked, and wages paid.

5.12.4.1 At any time during the term of the Contract, the County may conduct an audit of Contractor's records as well as field visits with Contractor's employees to ascertain compliance with the Living Wage Program.

5.12.4.2 Contractor will be required to place specified Living Wage posters at Contractor's place of business and locations where Contractor's employees are working. Contractor will also be required to distribute County-provided notices to each of its employees providing services to the County at least once per year.

5.12.5 Healthcare Premium Coverage

Awarded Contractors will be required to provide 100% employer-paid healthcare premiums for employees who work 30 hours or more per week providing services under the Contract at the minimum actuarial value of the ACA Gold Plan, as specified in Paragraph 1.2 (Equitable Access to Healthcare for Contracted Employees) above and 9.2.1 (Employer Paid Healthcare Premiums) of Appendix A (Sample Contract) to this RFP.

5.12.6 Labor Peace Agreements

Awarded Contractors must implement and ensure that each subcontractor implement, prior to providing any services under any resultant Contract, a Labor Peace Agreement, as further specified in Paragraph 9.3 (Labor Peace Agreement) of Appendix A (Sample Contract) to this RFP.

5.12.7 Violations of the provisions of the Living Wage Program will subject Contractor to withholding of monies owed to Contractor under the Contract, liquidated damages, possible termination and/or debarment from future County contracts in accordance with [County Code, Chapter 2.202](#).

- 5.12.8** Contractors that submit false information may be barred from participating in the prospective Contract and future County contracts in accordance with [County Code, Chapter 2.202](#).

5.13 Pending Acquisitions/Mergers by Proposing Company

Proposer must notify the County of any pending acquisitions/mergers of its company unless otherwise legally prohibited from doing so. If Proposer is restricted from legally notifying the County of pending acquisitions/mergers, then it should notify the County of the actual acquisitions/mergers as soon as the law allows and provide to the County the legal framework that restricted it from notifying the County prior to the actual acquisitions/mergers. This information must be provided by Proposer in Exhibit 1 (Organization Questionnaire/Affidavit) of Appendix B (Required Forms) to this RFP. Failure of Proposer to provide this information may eliminate its proposal from any further consideration. Proposer will have a continuing obligation to notify the County and update any changes to its response in Exhibit 1 to this RFP, during this solicitation and during the term of any Contract that may be awarded pursuant to this solicitation.

5.14 Defaulted Property Tax Reduction Program

5.14.1 The prospective Contract is subject to the requirements of the County's Defaulted Property Tax Reduction Program ("Defaulted Tax Program"), ([County Code, Chapter 2.206](#)). Prospective Contractors should reference the pertinent provisions in Paragraph 8.51 (Warranty of Compliance with County's Defaulted Property Tax Reduction Program) and 8.52 (Termination for Breach of Warranty to Maintain Compliance with County's Defaulted Property Tax Reduction Program) of Appendix A (Sample Contract), both of which are incorporated by reference into and made a part of this solicitation. The Defaulted Tax Program applies to both Contractors and their subcontractors.

5.14.2 Proposers will be required to certify that they are in full compliance with the provisions of the Defaulted Tax Program and must maintain compliance during the term of any Contract that may be awarded pursuant to this solicitation or must certify that they are exempt from the Defaulted Tax Program by completing Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP. Failure to maintain compliance, or to timely cure defects, may be cause for termination of a Contract or initiation of debarment proceedings against the non-compliant Contractor ([County Code, Chapter 2.202](#)).

5.14.3 Proposals that fail to comply with the certification requirements of the Defaulted Tax Program will be considered non-responsive and excluded from further consideration.

5.15 County's Commitment to Zero Tolerance Policy on Human Trafficking

5.15.1 On October 4, 2016, the County approved a motion taking significant steps to protect victims of human trafficking by establishing a zero-tolerance policy on human trafficking. The policy prohibits Contractors

engaged in human trafficking from receiving Contract awards or performing services under a County contract.

- 5.15.2** Contractors are required to complete Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP, certifying that they are in full compliance with the County's Zero Tolerance Policy on Human Trafficking provision as defined in Paragraph 8.54 (Compliance with County's Zero Tolerance Policy on Human Trafficking) of Appendix A (Sample Contract) to this RFP. Further, Contractors are required to comply with the requirements under said provision for the term of any Contract awarded pursuant to this solicitation.

5.16 Default Method of Payment: Direct Deposit or Electronic Funds Transfer (EFT)

- 5.16.1** The County, at its sole discretion, has determined that the most efficient and secure default form of payment for goods and/or services provided under a contract with the County must be Electronic Funds Transfer (EFT) or direct deposit, unless an alternative method of payment is deemed appropriate by the Auditor-Controller (A-C).
- 5.16.2** Upon contract award or at the request of the A-C and/or the contracting department, Contractor must submit a direct deposit authorization request with banking and vendor information, and any other information that the A-C determines is reasonably necessary to process payment(s) and comply with all accounting, record keeping, and tax reporting requirements.
- 5.16.3** Any provision of law, grant, or funding agreement requiring a specific form or method of payment other than EFT or direct deposit will supersede this requirement with respect to those payments.
- 5.16.4** Upon Contract award or at any time during the duration of the Contract, Contractor may submit a written request for an exemption to this requirement. The A-C, in consultation with the contracting department(s), will decide whether to approve exemption requests.

5.17 Proposer's Acknowledgement of County's Commitment to Fair Chance Employment Hiring Practices

- 5.17.1** On May 29, 2018, the County approved a Fair Chance Employment Policy in an effort to remove job barriers for individuals with criminal records. The policy requires businesses that contract with the County to comply with fair chance employment hiring practices set forth in California Government Code [Section 12952](#). Additionally, on February 27, 2024, the County adopted County Code [Chapter 8.300](#) (Fair Chance Ordinance for Employers) to facilitate meaningful implementation of Fair Chance policies in the County and remove barriers to employment to ensure individuals with criminal records have fair and equitable access to opportunities for gainful employment.

- 5.17.2** Proposers are required to complete Exhibit 2 (Certification of Compliance) of Appendix B (Required Forms) to this RFP, certifying that they, and their subcontractors, are in full compliance with [Section 12952](#) and [Chapter 8.300](#) of the County Code (Fair Chance Ordinance for Employers), as indicated in Appendix A (Sample Contract) to this RFP.
- 5.17.3** Further, Contractors are required to comply with the requirements under [Section 12952](#) and the County Code [Chapter 8.300](#) for the term of any Contract awarded pursuant to this solicitation.
- 5.17.4** Contractor's violation of Paragraph 5.17 (Proposer's Acknowledgement of County's Commitment to Fair Chance Employment Hiring Practices) of the Contract may constitute a material breach of the Contract. In the event of such material breach, the County may, in its sole discretion, terminate the Contract.

5.18 Prohibition from Participation in Future Solicitation(s)

Any Proposer, Contractor or its subsidiary or subcontractor(s) (Proposer/Contractor), is prohibited from submitting a bid or proposal in a County solicitation if Proposer/Contractor has provided advice or consultation for the solicitation. Proposer/Contractor is also prohibited from submitting a bid or proposal in a County solicitation if Proposer/Contractor has developed or prepared any of the solicitation materials on behalf of the County. A violation of this provision will result in the disqualification of Proposer/Contractor from participation in the County solicitation or the termination or cancellation of any resultant County Contract ([County Code, Chapter 2.202](#)).

5.19 Community Business Enterprise (CBE) Participation

The County has adopted a Community Business Enterprise (CBE) Program, which includes business enterprises certified as disadvantaged business enterprises disabled veteran-owned, minority-owned, women-owned, and lesbian, gay, bisexual, transgender, queer, and questioning-owned business types. The County has established a collective 25% participation goal for CBE certified firms, calculated on the eligible procurement dollars. The program maintains data on the types of businesses registered as CBEs and their utilization. Proposer's CBE participation must be reflected in Exhibit 5 [Community Business Enterprise (CBE) Information] of Appendix B (Required Forms) to this RFP.

All Proposers must document efforts it has taken to assure that CBEs are utilized, when possible, to provide supplies, equipment, technical services, and other services under the Contract. Proposer must make documents related to these efforts available to the County upon request.

The County strongly encourages participation by CBEs; however, the final selection will be made without regard to race, color, creed, or gender. The final selection will be based on Proposer's ability to provide the best service and value to the County.

To obtain a list of the County's CBE certified firms, e-mail the request to the County of Los Angeles Department of Economic Opportunity at CBESBE@opportunity.lacounty.gov with the subject "Request for CBE Listing."

For additional information, contact the Office of Small Business at: (844) 432-4900 or at OSB@opportunity.lacounty.gov.

5.20 Contribution and Agent Declaration

[Government Code Section 84308](#) requires a party to a contract proceeding to disclose any contribution of more than \$500 made to a County officer within the preceding 12 months by the party or their agent. State regulations require this disclosure to be made at the time an application is filed, and, if a contribution is made during the Contract proceeding, within 30 days of making a contribution or on the date on which the party first appears before or communicates with the agency regarding the proceeding after making the contribution, whichever is earliest. All Proposers are advised that they and all of their subcontractors must complete and return as part of its proposal, the Contribution and Agent Declaration included in Exhibit 8 (Contribution and Agent Declaration Form) of Appendix B (Required Forms) to this RFP as part of its proposal. Proposers are further advised that they and their subcontractors must update the Contribution and Agent Declaration Form throughout the pendency of this solicitation if a contribution is made after the initial disclosure when the proposal is submitted, and as requested at any time by the County prior to Contract award. Failure by Proposer or any subcontractor(s) to complete and submit the required Exhibit 8 and failure by Proposer or any subcontractor(s) to update the declaration as required by law or as otherwise requested by the County, may eliminate the proposal from further consideration and/or Proposer may be disqualified from a Contract award, as determined in the County's sole discretion. Further, all Proposers and their subcontractors are prohibited under [Government Code Section 84308](#) from making a contribution of more than \$500 to a County officer for 12 months after the date a final decision is made in the contract proceeding involving this solicitation.

6.0 COUNTY'S PREFERENCE PROGRAMS

6.1 Overview of County's Preference Programs

- 6.1.1** The County has three preference programs: the Local Small Business Enterprise (LSBE), Disabled Veteran Business Enterprise (DVBE), and Social Enterprise (SE). The Board encourages business participation in the County's contracting process by continually streamlining and simplifying our selection process and expanding opportunities for these businesses to compete for County opportunities.
- 6.1.2** The Preference Programs (LSBE, DVBE, and SE) require that a business complete certification prior to requesting a preference in a solicitation. These programs, and how to obtain certification are further explained in Paragraphs 6.2 (Local Small Business Enterprise (LSBE) Preference Program), 6.3 (Social Enterprise (SE) Preference Program), and 6.4

(Disabled Veteran Business Enterprise (DVBE) Preference Program) of this RFP. Additional information on the County's preference programs is also available on the Department of Economic Opportunity (DEO) website at:

https://iddweb.isd.lacounty.gov/DCA_eComplaint/SmallBusinessCertifications.

6.1.3 In no case will the Preference Programs (LSBE, DVBE, and SE) price or scoring preference be combined with any other County preference program to exceed 15% in response to any County solicitation.

6.1.4 Sanctions and financial penalties may apply to a business that knowingly, and with intent to defraud, seeks to obtain or maintain certification as a certified LSBE, DVBE, or SE when not qualified.

6.2 Local Small Business Enterprise (LSBE) Preference Program

6.2.1 The County will apply the LSBE preference during this solicitation process to businesses that meet the definition of an LSBE for solicitations not subject to the federal restriction on geographical preferences, consistent with [Chapter 2.204.030 of the County Code](#).

6.2.2 The business must be certified by the County prior to requesting the LSBE preference in a solicitation. To apply for certification as an LSBE, businesses should contact DEO at:

https://iddweb.isd.lacounty.gov/DCA_eComplaint/SmallBusinessCertifications.

6.2.3 Businesses requesting the LSBE preference must complete and submit Exhibit 3 (Request for Preference Consideration) of Appendix B (Required Forms) to this RFP and submit their LSBE certification approval letter ("Certification for Non-Federally Funded Solicitations") from the County with its proposal.

6.3 Social Enterprise (SE) Preference Program

6.3.1 The County will apply the SE preference during this solicitation process to businesses that meet the definition of an SE for solicitations not subject to the federal restriction on geographical preferences, consistent with [Chapter 2.205 of the County Code](#).

6.3.2 The business must be certified by the County, prior to requesting the SE preference in a solicitation. To apply for certification as an SE, businesses should contact DEO at:

https://iddweb.isd.lacounty.gov/DCA_eComplaint/SmallBusinessCertifications.

6.3.3 Businesses requesting the SE preference must complete and submit Exhibit 3 (Request for Preference Consideration) of Appendix B (Required Forms) to this RFP and submit their SE certification approval letter

(“Certification for Non-Federally Funded Solicitations”) from the County with its proposal.

6.4 Disabled Veteran Business Enterprise (DVBE) Preference Program

6.4.1 The County will apply the DVBE preference during this solicitation process to businesses that meet the definition of a DVBE, consistent with [Chapter 2.211 of the County Code](#).

6.4.2 The business must be certified by the County, prior to requesting the DVBE preference in a solicitation. To apply for certification as a DVBE, businesses should contact DEO at:

https://iddweb.isd.lacounty.gov/DCA_eComplaint/SmallBusinessCertifications.

6.4.3 Businesses requesting the DVBE preference must complete and submit Exhibit 3 (Request for Preference Consideration) of Appendix B (Required Forms) to this RFP and submit their DVBE certification approval letter from the County with its proposal.

6.5 Preference Program Enterprises (PPEs) - Prompt Payment Program

It is the intent of the County that Certified Preference Program Enterprises (PPEs) receive prompt payment for services they provide to County Departments. Prompt payment is defined as 15 calendar days after receipt of an approved, undisputed invoice which has been properly matched against documents such as a receiving, shipping, or services delivered report, or any other validation of receipt document consistent with Board Policy 3.035 ([Preference Program Payment Liaison and Prompt Payment Program](#)).

7.0 BUSINESS PROPOSAL REQUIREMENTS AND EVALUATION

This Paragraph 7.0 contains key project activities, provides Proposers with proposal submission requirements and submittal instructions, and identifies evaluation criteria.

7.1 Truth and Accuracy of Representations

False, misleading, incomplete, or deceptively unresponsive statements in connection with a proposal will be sufficient cause for rejection of the proposal. The evaluation and determination in this area will be at the Department’s sole judgment and its judgment will be final. All proposals must be firm and final offers and may not be withdrawn for a period of 365 days following the final proposal submission date.

7.2 RFP Timetable

The timetable for this RFP is as follows:

- Release of RFPJanuary 22, 2026
- Request for a Solicitation Requirements Review Due February 5, 2026
- Deadline to Register for Mandatory Proposers' Conference..... February 11, 2026
- Part 1 – Written Questions Due (Pre-Proposers' Conference and Site Visit)..... February 12, 2026
- Part 1 – Questions and Answers Released February 27, 2026
- Mandatory Proposers' Conference & Site Visit March 2 – 4, 2026
- Submission of Application for Exemption to Living Wage Program March 9, 2026
- Part 2 – Written Questions Due (Pre-Proposers' Conference and Site Visit)..... March 11, 2026
- Part 2 – Questions and Answers Released March 20, 2026
- Proposals due by 3:00 P.M. (Pacific Time) April 9, 2026

The foregoing dates may be changed at any time at the sole discretion of the Department. Such changes will be made through an addendum and posted on the Department's website at <https://lasd.org/transparency/solicitations/>. All potential Proposers are encouraged to monitor the above solicitation website for Bulletins, as they are posted, during the entire solicitation process.

7.3 Proposers' Questions

7.3.1 Proposers must submit written questions regarding this RFP by e-mail only to the individual identified below. All questions must be received by the date and time specified in Paragraph 7.2 (RFP Timetable) above. All questions, without identifying the submitting company, will be compiled with the appropriate answers, and issued as an addendum to this RFP.

7.3.2 When submitting questions, please specify this RFP, Paragraph number, and page number as well as quote the language that prompted the question. This will ensure that the section in question can be quickly found in this RFP. The County reserves the right to group similar questions when providing answers.

Questions must be emailed to:

E-mail address: v2flores@lasd.org

Attention: Virginia Flores-Villalobos, Contract Analyst

7.4 Submission of Application for Exemption to Living Wage Program

7.4.1 If a Proposer believes that it does not fall within the Living Wage Program's definition of Employer or that it meets the exception to the Living Wage Program, then Proposer must complete Exhibit 10

(Application for Exemption) of Appendix B (Required Forms) to this RFP, and submit to the County, by the date and time specified in Paragraph 7.2 (RFP Timetable) of this RFP and include in its submission all necessary documentation to support the claim such as a collective bargaining agreement, if applicable. Upon reviewing Proposer's application, the County will determine, at its sole discretion, whether Proposer falls within the definition of Employer or meets the exception to the Living Wage Program. The County's decision will be final.

- 7.4.2** Note that the collective bargaining agreement exception applies if it is demonstrated to the County that the agreement is bona fide and that the agreement expressly provides that it supersedes all of the provisions of the Living Wage Program, or (if not all) those specific provisions that are superseded. Contractor is subject to any provision of the Living Wage Program not expressly superseded by the collective bargaining agreement.

7.5 Mandatory Proposers' Conference and Mandatory Facility Site Visits

- 7.5.1** A Mandatory Proposer's Conference will be held to discuss this RFP and Living Wage Requirements; whereby County staff will provide an overview and respond to questions from potential Proposers.
- 7.5.2** Mandatory Facilities Site Visits will proceed the Mandatory Proposer's Conference to allow potential Proposers to visit the County's facilities where the custodial services will be provided.
- 7.5.3** Interested Proposers are strongly encouraged to review this RFP in its entirety and begin preparation of their proposals prior to the Conference.
- 7.5.4** At least one representative for each Proposer **must** attend the Mandatory Proposers' Conference and Facility Site Visits in **their entirety**, or their proposals will be rejected as non-responsive (disqualified) without review and eliminated from further consideration.
- 7.5.5** Prospective Proposers must RSVP to the Contract Analyst identified in Paragraph 5.2 (Contact with County Personnel) of this RFP on or before the deadline specified in Paragraph 7.2 (RFP Timetable) above. Proposer must provide the names, titles, email addresses, phone numbers and a copy of a valid California ID of not more than three full-time employee/representatives who will be attending the Mandatory Proposers' Conference and Facility Site Visits.

The Mandatory Proposers' Conference and Mandatory Facility Site Visits will be scheduled as follows:

Mandatory Proposer's Conference

Date: Monday, March 2, 2026*

Time: 8:00 A.M. (PST)

Mandatory Facility Site Visits

Date: March 2, 2026, through March 4, 2026

*Only Potential Proposers who have successfully registered by the date and time specified in Paragraph 7.2 (RFP Timetable) above, will be notified of the location of the conference and site visits.

- 7.5.6** County staff will make a reasonable attempt to respond to questions from potential Proposers; however, all subsequent written answers and any bulletins to the RFP will supersede verbal responses provided at the conference or facility site visits. Written answers will be posted on the Department's website, by the date specified in Paragraph 7.2 (RFP Timetable) above, at: <http://lasd.org/transparency/solicitations/>.

7.6 Preparation of the Proposal

Two separate proposals must be submitted - a Business Proposal and a Cost Proposal. All proposals must be bound and submitted in the prescribed format. Any proposal that deviates from this format may be rejected as non-responsive without review at the County's sole discretion.

7.7 Business Proposal Requirements and Evaluation Criteria (60%)

- 7.7.1** The content and sequence of the Business Proposal must be as follows:

- Table of Contents
- Executive Summary (Section A)
- Proposer's Qualifications (Section B)
- Proposer's Approach to Provide Required Services (Section C)
- Proposer's Quality Control Plan (Section D)
- Living Wage Compliance (Section E)
- Exceptions to Terms and Conditions of Contract and/or Requirements of Statement of Work and Attachments (Section F)
- Business Proposal Required Forms and Corporate Documents (Section G)

7.7.2 Table of Contents

List all material included in the Business Proposal. Include a clear definition of the material, identified by sequential page numbers and by Paragraph reference numbers.

7.7.3 Executive Summary (Section A)

The proposal must include an Executive Summary of Proposer's understanding of the project. The Executive Summary must condense and highlight the contents of Proposer's Business Proposal to provide the Department with a broad understanding of Proposer's approach, qualifications, experience, and staffing.

7.7.4 Proposer's Qualifications (Section B)

Proposer's response must clearly describe Proposer's qualifications, background, experience, financial stability, resources, and capability to provide and perform the required services. The following Sections must be included:

7.7.4.1 Proposer's Background and Experience (Section B.1)

Proposer must provide specific details of relevant background information and experience to demonstrate that Proposer meets or exceeds the Minimum Mandatory Requirement(s) stated in Paragraph 3.0 (Minimum Mandatory Requirements) of this RFP and has the financial capability/stability, background, experience, and resources to provide and perform the required services as a corporation or other business entity.

Proposer must provide an organizational chart which describes how proposer manages projects similar to the Services requested in this RFP.

7.7.4.2 Proposer's List of References (Section B.2)

Proposer will be evaluated on the verification of references provided in Exhibit 7 (Proposer's List of References) of Appendix B (Required Forms). In addition to the references provided, a review will include the Contractor Alert Reporting Database, if applicable, reflecting past performance history on County or other contracts. This review may result in point deductions up to 100% of the total points awarded in this evaluation subcategory (Proposer's List of References).

Proposer must provide three references from different companies where the same or similar scope of services was provided to demonstrate that Proposer meets the Minimum Mandatory Requirements stated in Paragraph 3.0 (Minimum Mandatory Requirements) of this RFP. Although one reference may satisfy the requirements listed in Paragraph 3.0 (Minimum Mandatory Requirements) to this RFP, a total of three references from different companies are still required for evaluation. Proposer's completed Exhibit 7 (List of References) of Appendix B (Required Forms) to this RFP must be provided in Section G (Business Proposal Required Forms and Corporate Documents) of Proposer's Business Proposal. Proposer may use additional sheets, if necessary.

It is Proposer's sole responsibility to ensure that information provided for each reference is accurate.

- a. The County may disqualify a Proposer as non-responsive and/or non-responsible if:
 - i. References fail to substantiate Proposer's description of the services provided, or
 - ii. References fail to support that Proposer has a continuing pattern of providing capable, productive and skilled personnel, or
 - iii. The Department is unable to reach the point of contact after reasonable effort. It is Proposer's responsibility to inform the point of contact of availability during normal working hours.
- b. Proposer's Debarment History and List of Terminated Contracts

The County will conduct a review of Proposer's terminated contracts and debarment history. Proposer must include contracts terminated within the past three years with a reason for termination in Exhibit 4 (Debarment History and List of Terminated Contracts) of Appendix B (Required Forms) to this RFP. Proposer's completed Exhibit 4 (Debarment History and List of Terminated Contracts) must be provided in Section G (Business Proposal Required Forms and Corporate Documents) of Proposer's business proposal.

7.7.4.3 Proposer's Financial Capability (Section B.3)

The County will conduct a review of Proposer's financial capability. Proposer must provide copies of the company's most current and prior two fiscal years financial statements. Statements must include the company's assets, liabilities and net worth, and at a minimum should include the Balance Sheet, Statement of Income, and the Statement of Cash Flows. It should be noted that depending on the nature of the entity (e.g., for-profit, non-profit, and governmental) the title of these statements may differ. If audited statements are available, these should be submitted to meet this requirement. Do not submit Income Tax Returns to meet this requirement. Financial statements will be kept confidential if so stamped on each page.

7.7.4.4 Proposer's Pending Litigation and Judgments (Section B.4)

Identify by case name, number and court jurisdiction any pending litigation in which Proposer is involved, or judgments against Proposer in the past five years. Provide a statement describing the size and scope of any pending or threatening litigation against Proposer or principals of Proposer.

A Proposer that fails to disclose litigation and judgements may be rejected as non-responsive or disqualified.

If a Proposer has no pending litigation, credible threatening litigation, or judgments, then a statement stating so must be provided in Section B.4 (Proposer's Pending Litigation and Judgements) of its Business Proposal.

7.7.5 Proposer's Approach to Providing Required Services (Section C)

Proposer will be evaluated on its description of the methodology to be used to meet or exceed the requirements of Exhibit A (Statement of Work) to this RFP, including, but not be limited to, the following:

- a. Proposer's plan for providing the daily cleaning requirements including:
 - Interior briefing rooms and armory,
 - Building entrances, lobbies, hallways,
 - Restrooms (private and public) and showers,
 - Offices, conference rooms, and control booths,
 - Lunchrooms and eating/vending areas, and
 - Module floors, inmate cells detention areas, as applicable.
- b. Proposer's plan for providing services for emergencies/call back work.
- c. Proposer's plan for providing a training program for new employees while continuing in service training for all employees. Such plan should include a summary of course materials and training schedules.
- d. Proposer's plan for recruitment and retention of custodians and supervisors, including the special staffing requirements specified in Paragraph 2.1.1 (Special Staffing Requirements (Region 1, Century Regional Detention Facility (CRDF) Only)) above. Description should include Proposer's hiring process which includes details of each step, including, but not be limited to, hiring requirements, background checks, discipline policy, and termination policy.
- e. **REGION 4 - ONLY**

Proposer's plan for ensuring the appropriate equipment and supplies identified in Paragraph 6.2 (Contractor-Furnished Items) of Exhibit A (Statement of Work) are available to provide services. Proposer's description should include contingency procedures for addressing shortages of supplies upon notification by the County.
- f. Proposer's plan for providing healthcare premium coverage at the minimum actuarial value of the ACA Gold Plan coverage.

*As described in Paragraph 1.2 (Equitable Access to Healthcare for Contracted Employees) of this RFP, the County's priority throughout this solicitation process is to ensure that contracted employees are provided fair and equal compensation that includes access to healthcare. As a result, Proposers will be evaluated on their willingness to, at a minimum, provide the ACA individual Gold Plan coverage.

7.7.6 Proposer's Quality Control Plan (Section D)

Proposer will be evaluated on its ability to establish and maintain a comprehensive Quality Control Plan (QCP) to be used as a self-monitoring tool to ensure the requirements of the Contract are provided as specified. Evaluation of the QCP must cover the proposed monitoring system of all services listed in Exhibit A (Statement of Work) and Attachment 2 [Performance Requirements Summary (PRS)].

The following factors may be included in the QCP:

- a. Activities to be monitored to ensure compliance with all Contract requirements,
- b. Monitoring methods to be used,
- c. Frequency of monitoring,
- d. Samples of forms to be used in monitoring,
- e. Title/level and qualifications of personnel performing monitoring functions, and
- f. Documentation methods of all monitoring results, including any corrective action taken.

7.7.7 Living Wage Compliance (Section E)

The Living Wage Program requires that Proposers/Contractors demonstrate during both this RFP solicitation process and for the term of its resultant Contracts business stability, integrity in employee relations, and the financial ability to pay the living wage.

A review and evaluation will be made based on the information provided in response to this Paragraph 7.7.7 and may include a site visit to audit Proposer's payroll and record keeping procedures.

7.7.7.1 Proposer's Staffing Plan

Proposer must submit a staffing plan using Exhibit 11 (Staffing Plan) of Appendix B (Required Forms) to this RFP. Proposer will be required to utilize full-time employees to provide services under the Contract, unless Proposer demonstrates, to the satisfaction of the County, the need to use non full-time employees based on staffing efficiency or the County's requirements of an individual job. If Proposer proposes to use

non full-time employees to provide services under the Contract, a written request justification, and all necessary documentation to substantiate the request must be submitted with its proposal. The County will determine, at its sole discretion, whether Proposer may use non full-time employees to provide services under the Contract. The County's decision will be final.

7.7.7.2 Demonstrated Controls over Labor-Payroll Record Keeping and Regulatory Compliance

Proposer must submit procedures and the internal controls established to ensure compliance with state and federal labor regulations and record keeping requirements, including but not limited to, a detailed narrative of the following:

- a. Methodology for tracking/documenting employee work hours from start of shift until completion of work shift including mandated breaks and travel time, when applicable. The detailed narrative should explain the documentation maintained actual time worked and the frequency of monitoring. Proposer must provide a copy of these records.
- b. Payroll record keeping system and process utilized to ensure that employee wages are appropriately paid. If the employee has multiple wage rates (e.g., County's Living Wage rate for County work and the firm's standard rate for other non-County work), Proposer must describe how the payroll is calculated and total wages paid.
- c. Proposer's efforts to ensure the company is updated with state and federal labor regulations and record keeping requirements.

7.7.8 Exceptions to Terms and Conditions of Contract and/or Requirements of Statement of Work and Attachments (Section F)

- 7.7.8.1 It is the duty of every Proposer to thoroughly review Appendix A (Sample Contract) and Exhibit A (Statement of Work) to ensure compliance with all terms, conditions, and requirements.

Proposer will be evaluated on its willingness to accept the Terms and Conditions outlined in Appendix A (Sample Contract) and the requirements in Exhibit A (Statement of Work) to this RFP.

It is the County's expectation that in submitting a proposal, Proposers will accept, as stated, the County's terms and conditions in Appendix A (Sample Contract) and the County's requirements in Exhibit A (Statement of Work) to this RFP.

However, Proposers are provided the opportunity to take exceptions to the County's terms, conditions, and requirements.

The County may deduct rating points or disqualify the proposal in its entirety if the exceptions are material enough to deem the proposal non-responsive.

Proposers are further notified that the County may, at its sole determination, disqualify any Proposer with whom the County cannot satisfactorily negotiate a Contract.

7.7.8.2 Section F of Proposer's proposal must include:

- a. A statement offering Proposer's acceptance of, or exceptions to, all terms and conditions listed in Appendix A (Sample Contract) to this RFP, and
- b. A statement offering Proposer's acceptance of, or exceptions to, all requirements listed in Exhibit A (Statement of Work).

For each exception, Proposer must provide:

- a. An explanation of the reason(s) for exception,
- b. The proposed alternative language, and
- c. A description of the impact, if any, to Proposer's price.

7.7.8.3 Proposer must indicate all exceptions to Appendix A (Sample Contract) and/or Exhibit A (Statement of Work) to this RFP, by providing a 'red-lined' version of the language in question. The County materially relies on this exception's procedure. Any Proposer who fails to make timely exceptions that are material and substantive in nature, as required herein, may be barred, at the County's sole discretion, from later making such exceptions, including during any Contract negotiations.

The County reserves the right to make changes to Appendix A (Sample Contract) to this RFP, and its Appendices and Exhibits at its sole discretion.

7.7.9 Business Proposal Required Forms and Corporate Documents (Section G)

7.7.9.1 Proposal must include all completed, signed, and dated forms identified in Appendix B (Required Forms).

- Exhibit 1 Organization Questionnaire/Affidavit
- Exhibit 2 Certification of Compliance
- Exhibit 3 Request for Preference Consideration
- Exhibit 4 Debarment History and List of Terminated Contracts
- Exhibit 5 Community Business Enterprise (CBE) Information

- Exhibit 6 Minimum Mandatory Requirements
- Exhibit 7 Proposer's List of References
- Exhibit 8 Contribution and Agent Declaration Form
- Exhibit 9 Pricing Schedule (include in cost proposal)
- Exhibit 10 Application for Exemption
- Exhibit 11 Staffing Plan
- Exhibit 12 Budget Sheet (include in cost proposal)
- Exhibit 13 Company Information Sheet (include in cost proposal)
- Exhibit 14 Declaration

7.7.9.2 Corporate Documents

a. Corporations or Limited Liability Company (LLC):

Proposer must submit the following documentation with its proposal:

- i. A copy of a "Certificate of Good Standing" from both the state of incorporation/organization and the State of California, if applicable.
- ii. A conformed copy of the most recent "Statement of Information" as filed with the California Secretary of State listing corporate officers or members and managers.

b. Limited Partnership:

Proposer must submit a conformed copy of the Certificate of Limited Partnership or Application for Registration of Foreign Limited Partnership as filed with the California Secretary of State, and any amendments.

7.8 Cost Proposal Requirements and Evaluation (40%)

The content and sequence of the Cost Proposal must be as follows:

- a. Cover Page identifying, at a minimum, the name of the firm, title of this RFP, date of submission and identification of printed documents as "Original" or "Copy."
- b. Exhibit 9 (Pricing Schedule) of Appendix B (Required Forms) to this RFP.

Proposer must complete Exhibit 9 (Pricing Schedule) as part of its Cost Proposal for each respective Region its firm is submitting a proposal for. Proposer's monthly rates listed in Exhibit 9 (Pricing Schedule) of its cost proposal must include cost for providing the ACA Gold Plan coverage* as specified in Paragraph 5.12.5 (Healthcare Premium Coverage) of this RFP.

*In the event the health care component is not required by the Board, Proposer is required to submit a separate Exhibit 9 (Pricing Schedule) without the added healthcare cost, for each respective Region its firm is submitting a proposal for.

c. Exhibit 12 (Budget Sheet) of Appendix B (Required Forms) to this RFP.

Proposer must complete Exhibit 12 (Budget Sheet) as part of its Cost Proposal for each respective Region its firm is submitting a proposal for. Exhibit 12 (Budget Sheet) of its cost proposal must identify pricing for the ACA Gold Plan coverage* as specified in Paragraph 5.12.5 (Healthcare Premium Coverage) of this RFP.

*In the event the health care component is not required by the Board, Proposer is required to submit a separate Exhibit 12 (Budget Sheet) without the added healthcare cost, for each respective Region its firm is submitting a proposal for.

d. Exhibit 13 (Company Information Sheet) of Appendix B (Required Forms) to this RFP.

Proposer must complete Exhibit 13 (Company Information Sheet) as part of its Cost Proposal for each respective Region its firm is submitting a proposal for.

Cost Proposals will be evaluated based on the pricing information submitted by Proposers in response to Exhibit 9 (Pricing Schedule) of Appendix B (Required Forms) to this RFP, per instructions specified therein and in Paragraph 7.10 (Proposal Submission) of this RFP. The maximum number of possible points for each Cost Proposal section will be awarded to the Cost Proposal with the lowest cost in that section, with all other proposals for that section compared to the lowest cost, and points awarded accordingly. The points for all sections will then be totaled for each Cost Proposal. Sections without any cost proposed will be deemed "included" as part of the services price and cannot be later modified during Contract negotiations. Should Proposer fail to account for any component or services in its Cost Proposal which are necessary to perform the services defined in this RFP and Exhibit A (Statement of Work) to Appendix A (Contract), Proposer will be required to provide the same at Proposer's sole expense.

However, should one or more of the Proposers request and be granted the LSBE Preference, SE Preference or the DVBE Preference, the cost component points will be determined as follows:

- Fifteen percent of the lowest cost proposed will be calculated, and that amount which must not exceed \$150,000 will be deducted from the cost submitted by all Proposers who requested and were granted any one of the preferences.
- In no case will any Preference be combined to exceed 15% of the lowest responsible bid.

7.9 Firm Offer-Withdrawal of Proposal

Until the proposal submission deadline, errors in proposals may be corrected by a request in writing to withdraw the proposal and by submission of another set of proposals with the mistakes corrected. Corrections will not be accepted once the deadline for submission of proposals has passed.

7.10 Proposal Submission

Proposals must be submitted as follows:

- 7.10.1** Business Proposal – The original business proposal and four numbered exact hard copies, and two electronic copies on two separate flash drives must be unclosed in a sealed envelope or box and plainly marked in the upper left-hand corner with the name and address of Proposer and reference this solicitation as follows:

**"BUSINESS PROPOSAL FOR CUSTODIAL SERVICES
RFP NUMBER 759-SH"**

- 7.10.2** Cost Proposal – The original cost proposal, one exact hard copy, and one electronic copy on a flash drive containing the cost proposal, must be submitted in a separate sealed package, plainly marked in the upper left-hand corner with the name and address of Proposer and reference this solicitation as follows:

**"COST PROPOSAL FOR CUSTODIAL SERVICES
RFP NUMBER 759-SH"**

The Cost Proposal will be handled separately from the Business Proposal during the evaluation process. While both the Business and Cost Proposals may be boxed and delivered together, they must be SEALED SEPARATELY within the box, if one box is used.

The proposal(s) must be delivered or mailed to:

**Los Angeles County Sheriff's Department
Fiscal Administration Bureau – Contracts Unit
211 West Temple Street – 6th Floor
Los Angeles, California 90012
Attention: Virginia Flores-Villalobos**

- 7.10.3** Proposers must also include a redacted business proposal in searchable Adobe Portable Document Format (PDF), with all confidential, proprietary and trade secret information redacted, as part of its proposal submission. With respect to this requirement, Proposer must submit one electronic copy in searchable PDF format, with confidential, proprietary and trade secret information redacted. Proposers must specifically redact only those parts of the Business Proposal that are actual trade secrets, confidential, or proprietary in nature. Blanket or categorical redactions and/or statements of confidentiality, or the marking of each page of the proposal as "Trade Secret," "Confidential," or "Proprietary," are not acceptable, and will be rejected at the sole discretion of the County.
- 7.10.4** It is the sole responsibility of the submitting Proposer to ensure that its proposal is received before the submission deadline. Submitting Proposers will bear all risks associated with delays in delivery by any person or entity, including the U.S. Mail. Any proposals received after the scheduled closing date and time for receipt of proposals, as listed in

Paragraph 7.2 (RFP Timetable) above, will not be accepted and will be returned to the sender unopened. Timely hand-delivered proposals are acceptable. No facsimile (fax) or electronic mail (e-mail) copies will be accepted.

- 7.10.5** All proposals will be firm offers and may not be withdrawn for a period of one year following the last day to submit proposals. Until the proposal submission deadline, errors in proposals may be corrected by a written request to withdraw the proposal and to submit another set of proposals with mistakes corrected. Corrections will not be accepted once the deadline for submission of proposals has passed.

8.0 SELECTION PROCESS OVERVIEW

8.1 Selection Process

- 8.1.1** Only potential Proposers who attend the Mandatory Proposers' Conference and Facility Site Visits in their entirety will be permitted to submit a written proposal in response to this RFP. There will be no exceptions to this requirement.
- 8.1.2** The County will conduct a comprehensive, fair, and impartial evaluation of proposals received in response to this RFP. The County will select the successful Proposer through a formal evaluation process, established prior to the opening and evaluation of proposals and remaining fixed throughout the procurement cycle.
- 8.1.3** The County reserves the sole right to judge the contents of the proposals submitted pursuant to this RFP and to review, evaluate and select the successful proposals. The selection process will begin with receipt of all timely submitted proposals. Evaluation of the proposals will be made by an evaluation committee selected by the Department.
- 8.1.4** The County will review Exhibit 1 (Organization Questionnaire/Affidavit), Exhibit 6 (Minimum Mandatory Requirements), Exhibit 7 (Proposer's List of References) of Appendix B (Required Forms) to this RFP to determine if Proposer meets the Minimum Mandatory Requirements as outlined in Paragraph 3.0 (Minimum Mandatory Requirements) of this RFP.
- 8.1.5** Failure of Proposer to comply with the Minimum Mandatory Requirements may eliminate its proposal from any further consideration. The County may elect to waive any informality in a proposal if the sum and substance of the proposal is present.
- 8.1.6** Ineligible Proposers will be informed in writing and afforded the opportunity to request a Disqualification Review pursuant to Paragraph 9.2 (Disqualification Review) of this RFP. All proposals that pass the initial screening will then be evaluated based on the evaluation criteria listed in Paragraph 7.0 (Business Proposal Requirements and Evaluation) above and will be scored and ranked in numerical sequence from high to low.

- 8.1.7** After a prospective Contractor has been selected, the County and the prospective Contractor will negotiate a Contract for submission to the Board for its consideration and possible approval. If a satisfactory Contract cannot be negotiated with a selected prospective Contractor, the County may, at its sole discretion, disqualify such selected prospective Contractor and begin Contract negotiations with the next qualified Proposer that submitted a proposal, as determined by the County.
- 8.1.8** Notwithstanding the foregoing, the County retains the right to select a proposal other than the qualified proposal with the highest number of points if the County determines, at its sole and reasonable discretion that another proposal is the most overall qualified, responsive, responsible, and in the best interest of the County.

8.2 Labor Law-Payroll Violations

- 8.2.1** In evaluating proposals, the County will review Contractor's history of labor law/payroll violations (including but not limited to violations or pending claims pertaining to wages, hours and working conditions such as minimum wage, prevailing wage, living wage, the Fair Labor Standards Act, employment of minors, or unlawful employment discrimination).
- 8.2.2** Applying criteria as established in Appendix D (Guidelines for Assessment of Proposer Labor Law/Payroll Violations) to this RFP, the County may deduct from one to ten percent of the maximum number of available evaluation points for labor law/payroll violations. Pending claims (i.e., claims that do not have a final disposition) will not result in point deductions; however, such claims may be reported to the Board before a Contract is awarded.

9.0 PROTEST PROCESS OVERVIEW

9.1 Solicitation Requirements Review

Any person or entity may seek a Solicitation Requirements Review by submitting Appendix C [Solicitation Requirements Review (SRR) Request] to this RFP, to the Department as described in this Paragraph 9.1. A request for a SRR may be denied, in the Department's sole discretion, the request does not satisfy all of the following criteria:

- a. The request is made within the time frame identified in solicitation document (generally within ten business days of the issuance of this solicitation document),
- b. The request includes documentation (e.g., letterhead, business card, etc.), which identifies the underlying authority of the person or entity to submit a proposal,
- c. The request itemizes in appropriate detail, each matter contested and factual reasons for the requested review, and

- d. The request asserts either that:
 - i. Application of the Minimum Mandatory Requirements, evaluation criteria and/or business requirements unfairly disadvantage the person or entity, or
 - ii. Due to unclear instructions, the process may result in the County not receiving the best possible responses from prospective Proposers.
- e. The SRR will be completed, and the Department's determination will be provided to the requesting person or entity, in writing, within a reasonable time prior to the proposal due date.

9.2 Disqualification Review

- 9.2.1** A proposal may be disqualified from consideration if the Department, at any time during the review/evaluation process, determines such proposal to be non-responsive, including if it fails to meet the Minimum Mandatory Requirements. If the Department determines that a proposal is disqualified due to Proposer's failure to meet the Minimum Mandatory Requirements or that its proposal is otherwise non-responsive, the Department will provide Proposer with a written notification, which will include the deadline for requesting a Disqualification Review.
- 9.2.2** Upon receipt of the written determination of non-responsiveness, Proposer may submit a written request for a Disqualification Review within the timeframe specified in the written determination.
- 9.2.3** A request for a Disqualification Review may, in the Department's sole discretion, be denied if the request does not satisfy all the following criteria:
 - a. The request for a Disqualification Review is submitted timely (i.e., by the date and time specified in the written determination), and
 - b. The request for a Disqualification Review asserts that the Department's determination of disqualification due to non-responsiveness was erroneous and provides factual support on each ground asserted as well as copies of all documents and other material that support the assertions.
- 9.2.4** The Disqualification Review must be completed, and the determination will be provided to the requesting Proposer, in writing, prior to the conclusion of the evaluation process.
- 9.2.5** Proposer can also be disqualified for reasons described throughout this RFP.

9.3 Department's Proposed Contractor Selection Review

9.3.1 Departmental Debriefing Process

Upon completion of the evaluation, and prior to entering negotiations with the selected Proposer, the Department will notify the remaining Proposer(s) in writing that the Department is entering negotiations with

another Proposer. Upon receipt of the letter, any non-selected Proposer may submit a written request for a Debriefing within the timeframe specified in the letter. A request for a Debriefing may, at the Department's sole discretion, be denied if the request is not received within the specified timeframe.

The purpose of the Debriefing is to compare the requesting Proposer's response to the solicitation document with the evaluation document. The requesting Proposer will be debriefed only on its response. Because Contract negotiations are not yet complete, responses from other Proposers will not be discussed, although the Department may inform the requesting Proposer of its relative ranking.

During or following the Debriefing, the Department will instruct the requesting Proposer of the manner and timeframe in which the requesting Proposer must notify the Department of its intent to request a Proposed Contractor Selection Review [refer to Paragraph 9.3.2 (Proposed Contractor Selection Review) below], if the requesting Proposer is not satisfied with the results of the Debriefing.

9.3.2 Proposed Contractor Selection Review

Any Proposer that has timely submitted a notice of its intent to request a Proposed Contractor Selection Review as described in Paragraph 9.3.1 (Departmental Debriefing Process) above, may submit a written request for a Proposed Contractor Selection Review, in the manner and timeframe as will be specified by the Department.

A request for a Proposed Contractor Selection Review may, at the Department's sole discretion, be denied if the request does not satisfy all of the following criteria:

- a. The request for a Proposed Contractor Selection Review is submitted timely (i.e., by the date and time specified by the Department), and
- b. The person or entity requesting a Proposed Contractor Selection Review asserts in appropriate detail, with factual reasons, one or more of the following grounds for review:
 - i. The Department materially failed to follow procedures specified in its solicitation document. This includes:
 - Failure to correctly apply the standards for reviewing the proposal format requirements.
 - Failure to correctly apply the standards, and/or follow the prescribed methods, for evaluating the proposals as specified in this solicitation document.
 - Use of evaluation criteria that were different from the evaluation criteria disclosed in this solicitation document.

- ii. The Department made identifiable mathematical or other errors in evaluating proposals, resulting in Proposer receiving an incorrect score and not being selected as the recommended Contractor,
- iii. A member of the evaluation committee demonstrated bias in the conduct of the evaluation,
- iv. Another basis for review as provided by state or federal law, and
- v. The request for a Proposed Contractor Selection Review sets forth sufficient detail to demonstrate that, but for the Department's alleged failure, Proposer would have been the lowest cost, responsive and responsible bid or the highest-scored proposal, as the case may be.

Upon completing the Proposed Contractor Selection Review, the Department representative will issue a written decision to Proposer within a reasonable time following receipt of the request for a Proposed Contractor Selection Review, and always before the date the Contract award recommendation is to be heard by the Board. The written decision will additionally instruct Proposer of the manner and timeframe for requesting a County Independent Review. [refer to Paragraph 9.4 (County Independent Review) below].

9.4 County Independent Review

Any Proposer that is not satisfied with the results of the Proposed Contractor Selection Review may submit a written request for a County Independent Review in the manner and timeframe specified by the Department in the Department's written decision regarding the Proposed Contractor Selection Review. Proposers that request a County Independent Review may not add new assertions or documentation to the assertions presented in their Proposed Contractor Selection Review. Any new assertions or documentation submitted by Proposer will not be considered or reviewed.

A request for County Independent Review may, in the County's sole discretion, be denied if the request does not satisfy all of the following criteria:

- a. The request for a County Independent Review is submitted timely (i.e., by the date and time specified by the Department), and
- b. The person or entity requesting review by a County Independent Review has limited the request to items raised in the Proposed Contractor Selection Review as listed in Paragraph 9.3.2 (Proposed Contractor Selection Review) above.

Upon completion of the County Independent Review, Internal Services Department will forward the report to the Department, which will provide a copy to Proposer.